Supplier Review Case File

02/07/2025

V2

Northbrook Facilities Authority

re

Pemberton Cold Chain Ltd

NORTHBROOK FACILITIES AUTHORITY

re

Pemberton Cold Chain Ltd

Notice of Findings

Protective Marking: OFFICIAL

NOTICE OF FINDINGS - RESPONSE REQUIRED

Supplier:	Pemberton Cold Chain Ltd	**Account ref:**	NFA/3107/0112
Responsible contact:	Helen Rose Marsden	**Supplier ID:**	PCC-0112-B
Address:	4 Quayside Works	**Registered:**	03/09/2014
	Lowmoor	**Contact tel:**	01632 960587
	LM2 6RA	**Review officer:**	Senior Reviewer Ruth Penhallow
		Interpreter:	None

You are notified of the finding(s) shown below. You do not have to respond in writing, but the review panel may take account of any matter you later rely on that was not raised in your response. Findings not numbered in sequence have been withdrawn.

Finding(s)

(1) On 02/04/2025 at Lowmoor Distribution Hub, delivered a consignment of chilled goods at a recorded core temperature above the agreed limit, causing stock to the value of £3,250 to be destroyed. 'Contrary to clause 9(1)(b) of the Chilled Goods Supply Agreement 2019.'

(2) On 28/04/2025 at Lowmoor Distribution Hub, failed to provide temperature records for a consignment on request, contrary to the record-keeping obligations. 'Contrary to clause 11(1) of the Chilled Goods Supply Agreement 2019.'

Issued by: Head of Contracts Owen Tarrant

Office: Headquarters

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Pemberton Cold Chain Ltd

Review Summary

REVIEW SUMMARY

Supplier: Pemberton Cold Chain Ltd
Account ref: NFA/3107/0112
Prepared by: Senior Reviewer Ruth Penhallow
Date prepared: 27/06/2025

On 02/04/2025 a delivery from Pemberton Cold Chain Ltd arrived at Lowmoor Distribution Hub. The hub's quality lead, Samuel Achterberg, found the consignment above temperature. The trailer's logger, serial TL-60417, showed a peak core temperature of 7.8°C against an agreed limit of 5.0°C.

A formal complaint was raised on 03/04/2025. When asked for the temperature records for a second consignment on 28/04/2025, the supplier could not produce them.

The supplier responded in writing on 16/05/2025. It admitted both findings and has since replaced its logger fleet. The losses claimed come to £3,250.

The reviewer proposes a formal warning with a 90-day audit. The matter is listed for the review panel on 22/07/2025.

Loss and damage claimed

Claimant	Amount	Description
Lowmoor Distribution Hub	£3,250	Chilled stock destroyed

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Statements

STATEMENT OF OBSERVATION

Name: Samuel Achterberg
Role: Quality Lead, Lowmoor Distribution Hub
Date: 03/04/2025

I am the quality lead at Lowmoor Distribution Hub. On 2 April 2025 at about 11:20 a trailer from Pemberton Cold Chain Ltd arrived at bay 6.

I took core readings from four cases. The highest was 7.8°C. The driver told me the refrigeration unit had shown a fault light on the motorway. I refused the consignment and recorded the readings.

Signature ..... Witnessed by .....

STATEMENT OF OBSERVATION

Name: Helen Rose Marsden
Role: Operations Director, Pemberton Cold Chain Ltd
Date: 16/05/2025

I am the operations director of Pemberton Cold Chain Ltd. We accept that the consignment of 2 April 2025 arrived above temperature because of a refrigeration fault, and that we could not produce the records requested on 28 April 2025.

Since then we have replaced every logger in our fleet and introduced a daily records check.

Signature ..... Witnessed by .....

SITE VISIT RECORD

Site: Lowmoor Distribution Hub, bay 6

Visit date: 09/04/2025 Time: 10:05

Inspector: Grace Okafor Badge: INS-4418

Trailer TR-3014 inspected with the hub quality lead. Door seals intact. Refrigeration unit fault code E-17 stored on 02/04/2025. Unit repaired by the supplier's contractor on 07/04/2025.

Recommendation: no further action on the trailer.

Signed: G. Okafor

RECEIVED

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Pemberton Cold Chain Ltd

Laboratory Report

Materials Test Report - Stage 1 Result

Laboratory: Westmere Analytical Services
Sample ID: LAB-25-0744
Received: 03/04/2025
Reported: 08/04/2025
Requested by: Senior Reviewer Ruth Penhallow

Test	Measured	Limit	Result
Core temperature on arrival	7.6°C	5.0°C	FAIL
Packaging integrity	Intact	Intact	PASS
Total viable count (cfu/g)	8.0 x 10^4	1.0 x 10^5	PASS
Label and date coding	Compliant	Compliant	PASS

Results relate only to the sample as received. One of four tests failed.

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Pemberton Cold Chain Ltd

Compliance History

THIS PRINTOUT IS PRODUCED FOR THE USE OF THE REVIEW PANEL ONLY
AND MUST NOT BE DISCLOSED TO ANY OTHER PARTY

SUPPLIER : PEMBERTON COLD CHAIN LTD
CONTACT : MARSDEN, HELEN ROSE
REGISTERED : 03/09/2014
ADDRESS : 4 QUAYSIDE WORKS
LOWMOOR
LM2 6RA

SUPPLIER ID : PCC-0112-B

SUMMARY OF RECORDED BREACHES
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2 LATE DELIVERY BREACHES (2016-2020)
1 TEMPERATURE CONTROL BREACH (2022)

NAME: MARSDEN, HELEN ROSE SUPPLIER ID: PCC-0112-B

RECORDED BREACH(ES)

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1. 14/06/16 LOWMOOR REVIEW PANEL

1.	LATE DELIVERY - CHILLED GOODS CHILLED GOODS AGREEMENT 2016 cl.4(1)	WARNING

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2. 02/03/20 LOWMOOR REVIEW PANEL

1.	LATE DELIVERY - CHILLED GOODS CHILLED GOODS AGREEMENT 2019 cl.4(1)	PENALTY £350

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3. 19/10/22 NORTHBROOK REVIEW PANEL

1.	TEMPERATURE EXCURSION - CHILLED GOODS CHILLED GOODS AGREEMENT 2019 cl.9(1)(b)	PENALTY £600 SUSPENDED 6 MTHS

NAME: MARSDEN, HELEN ROSE SUPPLIER ID: PCC-0112-B

ACCOUNT HOLD / PAYMENT DETAILS

ACCOUNT HOLD : NONE RECORDED
OUTSTANDING BALANCE : NIL